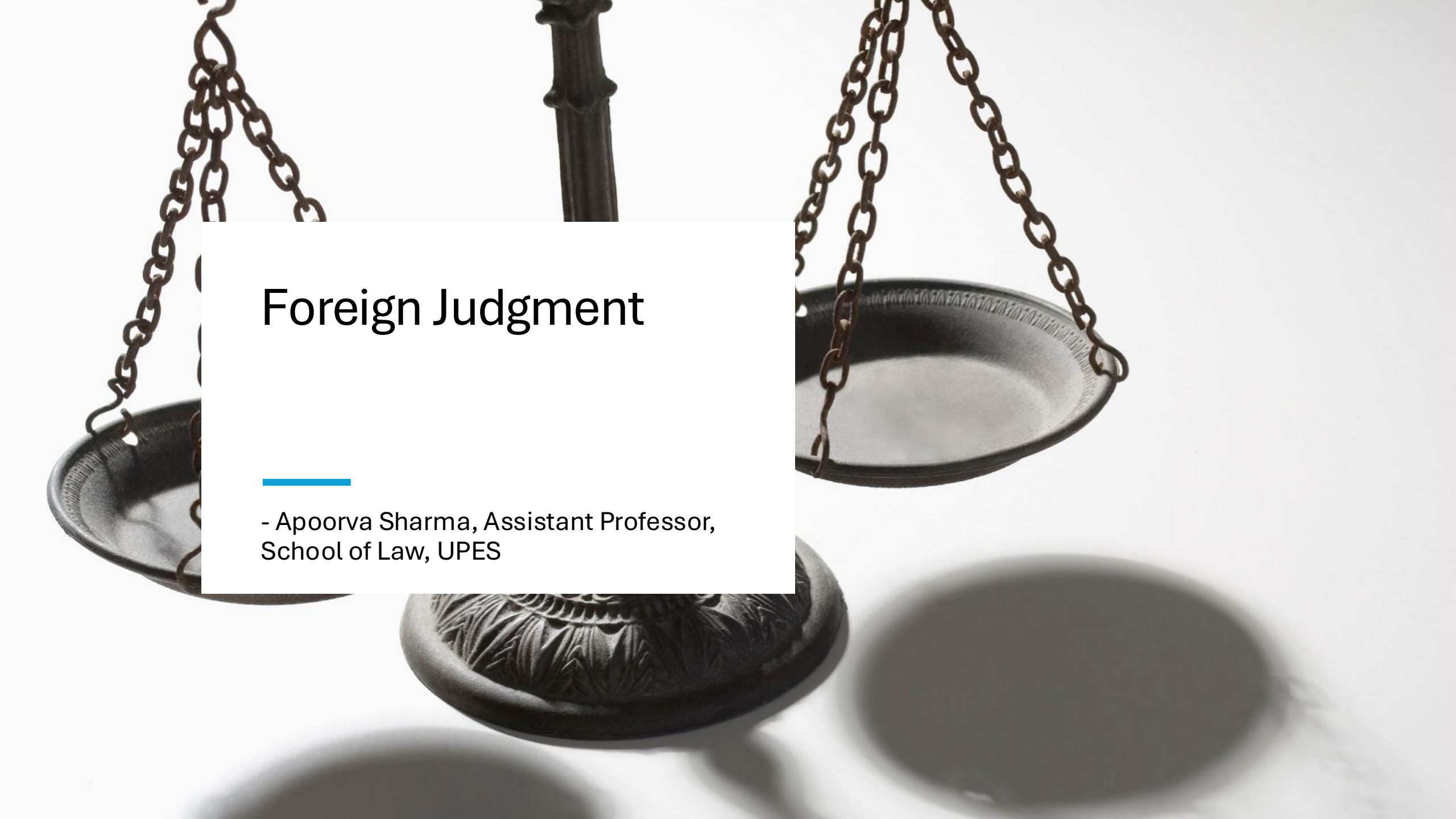




Foreign Judgment

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Foreign judgment

- Foreign court – sec. 2(5)
- Foreign judgment- sec. 2(6)
- Sec. 13, 14
- Sec. 14- presumption as to foreign judgment – on production of any document purporting to be certified copy of a foreign judgment – pronounced by a court of competent jurisdiction – unless contrary appears on record
- Exception – want of jurisdiction

Sec. 13 – when not conclusive

When conclusive? – matter adjudicated is same, between the same parties, or under whom they claim or are litigating, same title

When not conclusive? –

- Not by court of competent jurisdiction
- Not given on merits of the case
- Founded on an incorrect view of international law or refusal to recognise law of India where applicable
- Proceedings opposed to natural justice
- Judgment obtained by fraud
- Sustains a claim founded on a breach of any law in force in India.

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- Shall – mandatory
 - Directly adjudicated – constructive issue will not be deemed to have been decided.
 - 13(a)- when foreign court does not have jurisdiction.
 - When does it have jurisdiction? – parties domiciled in another nation, or both agree mutually and confer jurisdiction to foreign court.
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Jurisdiction

- W received summons but did not object to jurisdiction of foreign court and did not object to jurisdiction of foreign court rather files a WS. It is acquiescence to jurisdiction of foreign court.
- Acquiescence? – either by express/implied consent or by conduct
- Competence? – subject matter, wrt state that constituted it, in an international sense.
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Not on merits

Both parties heard, evidences recorded, judicial mind applied, judgment passed

If the court does not base the judgment on the evidence recorded?

Indian court cannot examine the correctness of evidence. Can only judge if the judgment was based on merits or not.

Test? – based on consideration of truth/falsity of P's claim.

- Natural justice - nullity
- Incorrect view of international law – eg- *lex loci contractus* – should be an apparent mistake
- Sustains a claim founded on breach of any law in force in India.
- DECREE OBTAINED BY FRAUD – court was ‘misled’
- Eg- H domiciled in US and shows false papers that W is also.
- Eg- falsely proving that court has jurisdiction

Y Narsimha Rao V. Venkata Laxmi 1991 SC

- Summons suppressed, fake domicile shown- fraud
- Marriage not solemnised in US neither did the parties reside in US.
- Also held- certified copy of J is necessary.
- AV Papayya Sastry v. Andhra Pradesh 2007 SC- Fraud?
- SATYA V. TEJA 1975 SC – H not domiciled in US court.
- R. Viswanathan V. Rukn-ul-Mulk Syed Abdul Wajid 1963 SC- in deciding if J is conclusive – Indian court will not examine if conclusions supported by evidence or if evidence is correct.
- Suit decided in FC and if pending suit in India- FJ will be conclusive

Enforcement

- Sec. 44A – money decree only
- Reciprocating territories
- Not includes arbitral award
- Directly executable